

COMMISSION IMPLEMENTING DIRECTIVE 2014/78/EU

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COMMISSION IMPLEMENTING DIRECTIVE 2014/78/EU

of 17 June 2014

amending Annexes I, II, III, IV and V to Council Directive 2000/29/EC on protective measures against the introduction into the Community of organisms harmful to plants or plant products and against their spread within the Community

THE EUROPEAN COMMISSION,

Having regard to the Treaty on the Functioning of the European Union,

Having regard to Council Directive 2000/29/EC of 8 May 2000 on protective measures against the introduction into the Community of organisms harmful to plants or plant products and against their spread within the Community (1), and in particular points (c) and (d) of the second paragraph of Article 14 thereof,

After consulting the Member States concerned,

Whereas:

(1)

In view of increased international trade and in order to protect plants, plant products and other objects, it is technically justified, consistent with the pest risk involved, to add the harmful organisms *Agrilus anxius* Gory and *Anthonomus eugenii* Cano to Section I of Part A of Annex I to Directive 2000/29/EC.

(2)

In order to protect the production and the trade of plants, plant products and other objects, it is technically justified, consistent with the pest risk involved, to delete the harmful organisms *Agrilus planipennis* Fairmaire, Citrus greening bacterium and *Diaphorina citri* Kuway from Section I of Part A of Annex II of Directive 2000/29/EC and to add them to Section I of Part A of Annex I to Directive 2000/29/EC.

(3)

The presence of the harmful organisms *Bursaphelenchus xylophilus* (Steiner and Bühner) Nickle et al. and *Trioza erytreae* Del Guercio poses an unacceptable risk to the production and the trade of plants, plant products and other objects. Therefore, it is technically justified, consistent with the pest risk involved, to move those harmful organisms, from Annex II to Directive 2000/29/EC to Annex I thereto. Information submitted by Portugal shows that those harmful organisms are now known to occur within the Union. Consequently, they should be added to Section II of Part A of Annex I to Directive 2000/29/EC.

(4)

It is technically justified, consistent with the pest risk involved to delete the harmful organism *Monilinia fructicola* (Winter) Honey from Section I of Part A of Annex I and *Ciborinia camelliae* Kohn from Section I of Part A of Annex II to Directive 2000/29/EC since those harmful organisms have spread and are established within a large part of the Union, and no measures are feasible to eradicate them or contain their further spread.

(5)

It is technically justified, consistent with the pest risk involved to delete the organism *Citrus vein enation* woody gall from Section II of Part A of Annex II to Directive 2000/29/EC given its observed low impact.

(6)

Certain plants, plant products and other objects are likely to host the following harmful organisms *Agrilus anxius* Gory, *Agrilus planipennis* Fairmaire, *Amauromyza maculosa* (Malloch), *Anthonomus eugenii* Cano, *Bemisia tabaci* Genn. (non-European populations), *Bursaphelenchus xylophilus* (Steiner and Bührer) Nickle et al., Citrus greening bacterium, *Diaphorina citri* Kuway, *Ditylenchus dipsaci* (Kühn) Filipjev, *Helicoverpa armigera* (Hübner), *Liriomyza huidobrensis* (Blanchard), *Liriomyza sativae* (Blanchard), *Liriomyza trifolii* (Burgess), *Spodoptera eridania* (Cramer), *Spodoptera frugiperda* Smith, *Spodoptera litura* (Fabricius), *Spodoptera littoralis* (Boisd.) and *Trioza erytreae* Del Guercio which are listed or are to be listed in Part A of Annexes I or II to Directive 2000/29/EC. Developments in scientific and technical knowledge, show that the special requirements set out in Part A of Annex IV to Directive 2000/29/EC are inadequate to reduce to an acceptable level, the phytosanitary risk caused by the introduction of those plants, plant products and other objects into the Union, and their movement within the Union. Therefore it is necessary to amend those special requirements and to add additional special requirements. In the case of *Bursaphelenchus xylophilus* (Steiner and Bührer) Nickle et al. the special requirements set out in Section I of Part A of Annex IV to Directive 2000/29/EC should also be amended to align them with Union rules on internal movement against this harmful organism.

(7)

As regards certain plants, plant products and other objects not listed in Part A of Annex IV to Directive 2000/29/EC, developments in scientific and technical knowledge, show that their introduction into the Union, and their movement within the Union may pose an unacceptable phytosanitary risk due to their likelihood to host the harmful organisms referred to in recital 6. Therefore it is necessary that those plants, plant products and other objects should be listed in Part A of Annex IV.

(8)

In addition, the plants, plant products or other objects referred to in recital 6 should be subject to plant health inspections before being introduced, or moved within, the Union. Therefore, those plants, plant products and other objects should be listed in Parts A and B of Annex V to Directive 2000/29/EC.

(9)

Frequent interceptions at import of *Manihot esculenta* Crantz, of *Limnophila* L. and *Eryngium* L., and of *Capsicum* L. have shown that the leaves of *Manihot esculenta* Crantz, the leafy vegetables of *Limnophila* L. and *Eryngium* L., and the fruits of *Capsicum* L. are likely to host harmful organisms listed in Annexes I and II to Directive 2000/29/EC. Therefore those plants should be subject to a plant health inspection before being introduced into the Union and their introduction should only be permitted if they are accompanied by a phytosanitary certificate. Consequently, they should be listed in Section I of Part B of Annex V.

(10)

Taking into account the revised FAO International Standard for Phytosanitary Measures No. 15 'Regulation of wood packaging material in international trade' it is considered that the current approach in Directive 2000/29/EC to impose different requirements, depending on whether the wood packaging material is actually in use or not, should be abandoned, since this approach is not anymore technically justified. Section I of Part A of Annex IV to Directive 2000/29/EC should be amended accordingly.

(11)

Similarly, wood used to wedge or support all types of cargo should be considered a type of wood packaging material, in line with the definitions in the International Standard for Phytosanitary Measures No. 15, since there is no technical justification anymore for regulating it separately from other types of

wood packaging material. Section I of Part A of Annex IV to Directive 2000/29/EC should be amended accordingly

(12)

It is considered that the formulation of the phytosanitary requirements based on a heat treatment of wood and isolated bark need to be amended to clarify that the requested heating time refers to continuous minutes, and that the requested temperature needs to be achieved throughout the entire profile of the wood or isolated bark in order to reach successful elimination of wood-infesting harmful organisms. Section I of Part A of Annex IV to Directive 2000/29/EC should be amended accordingly.

(13)

The CN codes for coniferous wood need to be updated in Part B of Annex V to Directive 2000/29/EC, to cover coniferous wood of a thickness not exceeding 6 mm, which according to a recent pest risk analysis also poses a risk for the introduction of *Bursaphelenchus xylophilus* (Steiner and Bühner) Nickle et al..

(14)

The names of *Pseudomonas solanacearum* (Smith) Smith, *Lycopersicon lycopersicum* (L.) Karsten ex Farw. and citrus greening bacterium should be amended in line with the revised scientific denomination of those organism. *Pseudomonas solanacearum* (Smith) Smith should be referred to as *Ralstonia solanacearum* (Smith) Yabuuchi et al.. *Lycopersicon lycopersicum* (L.) Karsten ex Farw. should be referred to as *Solanum lycopersicum* L.. The Citrus greening bacterium should be referred to as *Candidatus Liberibacter* spp., causal agent of Huanglongbing disease of citrus/citrus greening.

(15)

Council Directive 2007/33/EC (2) establishes measures to be taken against European populations of potato cyst nematodes (*Globodera pallida* (Stone) Behrens and *Globodera rostochiensis* (Wollenweber) Behrens) in order to determine their distribution, to prevent their spread and to control them. The current provisions of Directive 2000/29/EC concerning potato cyst nematodes (*Globodera pallida* (Stone) Behrens and *Globodera rostochiensis* (Wollenweber) Behrens) should be updated to align with the requirements of Directive 2007/33/EC. Annexes IV and V to Directive 2000/29/EC should therefore be amended accordingly.

(16)

By Commission Regulation (EC) No 690/2008 (3), certain zones are recognised as protected zones in respect of various harmful organisms. Regulation (EC) No 690/2008 has been amended to take account of the latest developments with regard to the protected zones within the Union and the following harmful organisms: Citrus tristeza virus (European strains), *Erwinia amylovora* (Burr.) Winsl. et al. and Grapevine flavescence dorée MLO. It is therefore necessary to amend Annexes I to V to Directive 2000/29/EC accordingly, to ensure that the requirements concerning protected zones with regard to the respective harmful organisms are consistent.

(17)

Moreover, several areas within the Union which have been recognised as protected zones with regard to certain harmful organisms, no longer fulfil the requirements because those harmful organisms are now established there. Those areas are the following: the autonomous communities of Castilla la Mancha, Murcia, Navarra and La Rioja, and the Comarca of the Community of Calatayud (Aragon) and the province of Guipuzcoa (Basque Country) (Spain), Friuli-Venezia Giulia and the province of Sondrio (Lombardy) (Italy), the communes of Ohrady, Topoľníky and Trhová Hradská (Slovakia) with regard to *Erwinia amylovora* (Burr.) Winsl. et al.; the Regional Unit of Argolida and Chania (Greece), Corsica (France) and Algarve (Portugal) with regard to Citrus tristeza virus (European strains). Part B of Annex II, Part B of Annex III and Part B of Annex IV to Directive 2000/29/EC should be amended accordingly.

(18)

In order to protect the production and trade of plants, plant products and other objects, it is technically justified, consistent with the pest risk involved, to add the harmful organisms *Dryocosmus kuriphilus* Yasumatsu and *Thaumtopoea processionea* L. to Part B of Annex I to Directive 2000/29/EC.

(19)

From information provided by Ireland, Portugal and the United Kingdom it appears that the territories of these countries are free from *Dryocosmus kuriphilus* Yasumatsu, and that those territories fulfil the conditions set out in point (h) of Article 2(1) of Directive 2000/29/EC for the establishment of a protected zone with respect to that harmful organism. Part B of Annex I and Part B of Annex IV to Directive 2000/29/EC should be amended accordingly. Similarly, Part B of Annex IV and Part A of Annex V to Directive 2000/29/EC should be amended to introduce requirements for the movement of certain plants, plant products and other objects into the protected zones.

(20)

From information provided by Ireland and the United Kingdom it appears that the territory of Ireland and part of the territory of the United Kingdom are free from *Thaumtopoea processionea* L., and that those areas fulfil the conditions set out in point (h) of Article 2(1) of Directive 2000/29/EC for the establishment of a protected zone with respect to that harmful organism. Part B of Annex I and Part B of Annex IV to Directive 2000/29/EC should be amended accordingly. Similarly, Part B of Annex IV and Part A of Annex V to Directive 2000/29/EC should be amended to introduce requirements for the movement of certain plants, plant products and other objects into the protected zones.

(21)

From a recent pest risk analysis carried out by France it emerges that *Ips amitinus* Eichhof does not pose an unacceptable phytosanitary risk in Corsica (France). Therefore Corsica should be removed from the list of protected zones with regard to this harmful organism. Part B of Annex II and Part B of Annex IV to Directive 2000/29/EC should be amended accordingly.

(22)

From information provided by the United Kingdom it appears that *Cryphonectria parasitica* (Murrill) Barr is not present in the Isle of Man, and that the Isle of Man fulfils the conditions set out in point (h) of Article 2(1) of Directive 2000/29/EC for the establishment of a protected zone with respect to that harmful organism. Part B of Annex II and Part B of Annex IV to Directive 2000/29/EC should be amended accordingly.

(23)

A recent pest risk analysis shows that the current requirements for introduction into, and movement within, certain protected zones of plants, plant products and other objects with regard to *Cryphonectria parasitica* (Murrill) Barr are inadequate to reduce the phytosanitary risk in question to acceptable levels. Those requirements should be updated. Part B of Annex II, Part B of Annex IV, Section II of Part A of Annex V and Section II of Part B of Annex V to Directive 2000/29/EC should be amended accordingly.

(24)

From information provided by France and Italy, it appears that Picardie (département de l'Aisne) and Ile de France (communes de Citry, Nanteuil-sur-Marne et Saâcy-sur-Marne) and Apulia are free from Grapevine flavescence dorée MLO, and they fulfil the conditions set out in point (h) of Article 2(1) of Directive 2000/29/EC for the establishment of a protected zone with respect to that harmful organism. Part B of Annex II and Part B of Annex IV to Directive 2000/29/EC should be amended accordingly.

(25)

From information provided by Switzerland it appears that Switzerland (except the Canton of Ticino and the Misox Valley) is free from Grapevine flavescence dorée MLO. It is therefore appropriate to include Switzerland (except the Canton of Ticino and the Misox Valley) as an area wherefrom plants of *Vitis* L. may be introduced into protected zones in respect of the organism. Part B of Annex IV to Directive

2000/29/EC should be amended accordingly.

(26)

Directive 2000/29/EC should therefore be amended accordingly.

(27)

The measures provided for in this Directive are in accordance with the opinion of the Standing Committee on Plant Health,

HAS ADOPTED THIS DIRECTIVE:

Article 1

Annexes I, II, III, IV and V to Directive 2000/29/EC are amended in accordance with the Annex to this Directive.

Article 2

Member States shall adopt and publish, 30 September 2014 at the latest, the laws, regulations and administrative provisions necessary to comply with this Directive. They shall forthwith communicate to the Commission the text of those provisions.

They shall apply those provisions from 1 October 2014.

When Member States adopt those provisions, they shall contain a reference to this Directive or be accompanied by such a reference on the occasion of their official publication. Member States shall determine how such reference is to be made.

Article 3

This Directive shall enter into force on the third day following that of its publication in the Official Journal of the European Union.

Article 4

This Directive is addressed to the Member States.

Done at Brussels, 17 June 2014.